

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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EDGAR ACUNA,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
RICHARD KERN, shield # 9459, POLICE OFFICER
JOHN WALSH, shield # 4008, POLICE OFFICER
LOWEZ WALKER, shield # 23357, POLICE OFFICER
MEHMET KANBUR, shield # 04045,

Defendants.
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**ORIGINAL
FILED**
IN CLERK'S OFFICE
U.S. DISTRICT COURT E.D.N.Y.
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BROOKLYN OFFICE

08 4847
Jury Trial Demanded

WEINSTEIN, J.
POLLAK, M.J.

PRELIMINARY STATEMENT

1. This is an action brought pursuant to 42 U.S.C. § 1983 alleging civil rights violations by the City of New York and individuals employed by the New York City Police Department ("NYPD"). Plaintiff alleges that, on January 15, 2007, NYPD officers subjected him to false arrest, excessive force, a denial of medical care, false evidence, and malicious prosecution in violation of the Fourth, Sixth and Fourteenth Amendments to the United States Constitution. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of attorney's fees and costs, and such other and further relief as the court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983 and the Fourth, Sixth and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343.

3. Venue is proper in the Eastern District of New York pursuant to 28 U.S.C. § 1391(b) and (c).

PARTIES

4. Plaintiff is a resident of the State of New York, County of Kings.

5. The City of New York is a municipal corporation organized under the laws of the State of New York.

6. Police Officer Richard Kern, Police Officer John Walsh, Police Officer Lowez Walker, and Police Officer Mehmet Kanbur are members of the NYPD who were involved in the arrest of plaintiff and the events arising out of plaintiff's arrest. These officers were acting under color of state law and in their capacities as NYPD officers at all relevant times herein. The officers are liable for directly participating in the unlawful acts described herein and for failing to intervene to protect plaintiff from unconstitutional conduct. The officers are sued in their individual capacities.

STATEMENT OF FACTS

7. On January 15, 2007, between 11:00 a.m. and 12:00 p.m., plaintiff and some friends, including Jonathan Cadet and Jean Michel, were washing their coats in the laundry and recreation room of 115 Ocean Avenue, Brooklyn, New York.

8. On January 15, 2007, Jonathan Cadet resided at 115 Ocean Avenue in apartment F-10.

9. At the above time and place, plaintiff and his friends were seized without cause by Officers Richard Kern, John Walsh, Lowez Walker, and Mehmet Kanbur (collectively referred to as the "officers").

10. In the course of effectuating the seizure, the officers pointed their guns at plaintiff and the others.

11. Jonathan Cadet explained to the officers that he was a resident of the building and that plaintiff and his friends were his guests.

12. Cadet offered to prove to the officers that he was a resident of the building.

13. The officers were not interested in the truth.

14. The officers conspired to falsely arrest plaintiff and his friends for trespassing in a building operated by the New York City Housing Authority.

15. During the course of arresting an unresisting and compliant plaintiff, Police Officer Kern forcefully grabbed plaintiff, struck plaintiff with his gun on plaintiff's left eye and shoulders, sprayed plaintiff with mace, choked plaintiff, slammed plaintiff to the ground, and handcuffed plaintiff excessively tight.

16. Officer Kern's fellow officers observed Kern's use of excessive force but they failed to intervene to protect plaintiff.

17. After arresting plaintiff, the officers took plaintiff to the 71st Precinct to process his arrest.

18. Plaintiff asked the officers for medical treatment but his request was denied.

19. While plaintiff was held in the precinct, the officers, pursuant to a conspiracy to frame plaintiff, prepared police reports which falsely stated that plaintiff had committed the crime of trespass.

20. At approximately 6:00 p.m., unidentified officers took plaintiff to Central Booking for further arrest processing and to await arraignment.

21. At Central Booking, plaintiff again asked for medical care.

22. In response, one of the officers who escorted plaintiff to Central Booking brought plaintiff back to the 71st Precinct where plaintiff was not provided with medical care and was held for several hours.

23. In the morning of January 16, 2007, the police brought plaintiff back to Central Booking.

24. While plaintiff was held in Central Booking, the arresting officers, pursuant to a conspiracy to frame plaintiff, misrepresented to a prosecutor employed by the District Attorney for Kings County that plaintiff had committed the crime of trespass.

25. During the afternoon of January 16, 2007, plaintiff was arraigned in New York City Criminal Court, Kings County.

26. The presiding judge released plaintiff on his own recognizance

27. Plaintiff appeared in court on February 28, 2007.

28. At the February 28, 2007 court conference, the criminal charges filed against plaintiff were dismissed at the prosecution's request.

29. Plaintiff suffered damage as a result of defendants' actions. Plaintiff suffered a loss of liberty, pain, bruising, emotional distress, mental anguish, fear, anxiety, humiliation, and embarrassment.

**PLAINTIFF'S FEDERAL CLAIMS AGAINST
POLICE OFFICER RICHARD KERN,
POLICE OFFICER JOHN WALSH, POLICE
OFFICER LOWEZ WALKER, AND POLICE
OFFICER MEHMET KANBUR**

30. Plaintiff repeats and realleges the allegations contained in ¶¶ 1-29 as if fully set forth herein.

31. The conduct of Officers Richard Kern, John Walsh, Lowez Walker, and Mehmet Kanbur, as described herein, amounted to false arrest, excessive force, a denial of medical care, fabrication of evidence, and malicious prosecution in violation of 42 U.S.C. § 1983 and the Fourth, Sixth and Fourteenth Amendments to the United States Constitution.

**PLAINTIFF'S FEDERAL CLAIM AGAINST
THE CITY OF NEW YORK**

32. Plaintiff repeats and realleges the allegations contained in ¶¶ 1-31 as if fully set forth herein.

33. The City of New York directly caused the constitutional violations suffered by plaintiff.

34. Upon information and belief, the City of New York, at all relevant times, was aware from notices of claim, lawsuits, complaints filed with the City, and from the City's own observations that defendants are unfit officers who have the propensity to commit the acts alleged herein. Nevertheless, the City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the officers and improperly retained and utilized them. Moreover, upon information and belief, the City of New York failed to adequately investigate prior complaints filed against the officers.

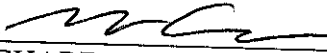
35. The aforesaid conduct by the City of New York violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Sixth and Fourteenth Amendments to the United States Constitution.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;

- b. Punitive damages in an amount to be determined by a jury;
- c. Attorney's fees and costs;
- d. Such other and further relief as this Court may deem just and proper,
including injunctive and declaratory relief.

DATED: December 2, 2008
Brooklyn, New York



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